

STATE OF NEW YORK

6964--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. EPSTEIN -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the administrative code of the city of New York, in relation to establishing standards for the design and construction of all-gender bathrooms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 378 of the executive law is amended by adding a new subdivision 21 to read as follows:

21. a. Standards for all-gender bathrooms to provide privacy and security, incorporating best practices in restroom design, including but not limited to:

(i) lockable individual toilet stalls with a minimum door height of eighty-four inches and a maximum undercut of four inches;

(ii) no visual gaps at the sides of doors and pilasters;

(iii) shared sink areas positioned outside of individual toilet stalls;

(iv) allowance for separate sinks within individual stalls; and

(v) installation of privacy partitions compliant with the international association of plumbing and mechanical officials' standards published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently published version of such publication.

b. All-gender bathrooms may include urinals provided they are enclosed within individual lockable stalls meeting the privacy standards in paragraph a of this subdivision.

c. (i) The department shall promulgate or amend regulations to allow and facilitate the designation, installation, and use of all-gender bathrooms in any use group as defined in the state building code, including but not limited to commercial, institutional, educational, and public facilities.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD09382-04-5

1 (ii) All-gender bathrooms shall be permitted in both new construction
2 and existing structures undergoing repair, renovation, or alteration
3 work.

4 (iii) Standards developed pursuant to this subdivision shall include
5 requirements for signage and wayfinding standards to ensure clear iden-
6 tification of all-gender bathrooms while maintaining inclusivity and
7 accessibility.

8 d. For the purposes of this subdivision, "all-gender bathrooms" shall
9 mean multi-fixture toilet rooms with separate, lockable partitions and a
10 shared sink area that can be used by individuals of all gender identi-
11 ties.

12 § 2. PC 403 of chapter 4 of the plumbing code of the administrative
13 code of the city of New York is amended by adding a new section 403.5 to
14 read as follows:

15 § 403.5 All-gender bathrooms. 1. (a) All-gender bathrooms shall be
16 designed to provide privacy and security, incorporating best practices
17 in restroom design, including but not limited to:

18 (i) lockable individual toilet stalls with a minimum door height of 84
19 inches and a maximum undercut of 4 inches;

20 (ii) no visual gaps at the sides of doors and pilasters;

21 (iii) shared sink areas positioned outside of individual toilet
22 stalls;

23 (iv) allowance for separate sinks within individual stalls; and

24 (v) installation of privacy partitions compliant with the interna-
25 tional association of plumbing and mechanical officials' standards
26 published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently
27 published version of such publication.

28 (b) All-gender bathrooms may include urinals provided they are
29 enclosed within individual lockable stalls meeting the privacy standards
30 in paragraph (a) of this subdivision.

31 2. All-gender bathrooms shall be permitted in both new construction
32 and existing structures undergoing repair, renovation, or alteration
33 work.

34 3. Standards developed pursuant to this section shall include require-
35 ments for signage and wayfinding standards to ensure clear identifica-
36 tion of all-gender bathrooms while maintaining inclusivity and accessi-
37 bility.

38 4. For the purposes of this section, "all-gender bathrooms" shall mean
39 multi-fixture toilet rooms with separate, lockable partitions and a
40 shared sink area that can be used by individuals of all gender identi-
41 ties.

42 § 3. This act shall take effect on the ninetieth day after it shall
43 have become a law. Effective immediately, the addition, amendment and/or
44 repeal of any rule or regulation necessary for the implementation of
45 this act on its effective date are authorized to be made and completed
46 on or before such effective date.